

2:00 PM

LINE: 4

25-CIV-03474

LAYA WASHINGTON VS. PORSCHE CARS NORTH AMERICA, INC., ET AL

LAYA WASHINGTON
PORSCHE CARS NORTH AMERICA, INC.

ROY ENAV
MICHAEL AYZEN

PLAINTIFF LAYA WASHINGTON’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

TENTATIVE RULING:

For the reasons stated below, Plaintiff Laya Washington’s unopposed Motion to Compel Further Responses to Plaintiff’s Requests for Production of Documents, Set One, filed December 17, 2025, is **GRANTED IN PART** and **DENIED IN PART**.

As to RFP No. 30, the motion is **GRANTED IN PART**, subject to the limitations set forth below. RFP No. 30 seeks:

All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR ESI of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiff with respect to the SUBJECT VEHICLE in other 2022 Porsche Panamera vehicles.

Defendant Porsche Cars N.A., Inc. (“PCNA”) responded:

PCNA objects to this request as vague, ambiguous, overly broad, and as asking for information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence including but not limited to that it does not take into consideration the statutory construct of the Song-Beverly Consumer Warranty Act. Whether Plaintiff is entitled to relief under the Song-Beverly Consumer Warranty Act is entirely unrelated to complaints in other 2022 Porsche Panamera vehicles. This case concerns whether Plaintiff is entitled to a remedy under the facts of this case. See *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216. Moreover, the request fails to describe with reasonable particularity the documents or categories of documents being requested, in violation of CCP 2031.030(c)(1). In addition, the term "complaints made by Plaintiff" is not defined, described, or otherwise explained in this request and, without definition, description, or explanation is vague, ambiguous and the information referred to or sought cannot be reasonably determined, without speculation. PCNA objects to the extent this request asks for information that is protected by the right to privacy. PCNA objects to this request to the extent it may call for information that is confidential, commercially sensitive, and/or proprietary. PCNA further objects to the extent this request asks PCNA to respond on behalf of any other entity.

PCNA’s objections are **OVERRULED** except as to overbreadth, which is sustained to the extent reflected in this ruling. RFP No. 30 seeks discoverable documents, but the request is overbroad as drafted. The Court limits RFP

No. 30 to customer complaints in California, not nationwide, that pertain to 2022 Porsche Panamera vehicles, not other years, makes, or models, and that are substantially similar to the complaints made by Plaintiff regarding the subject vehicle.

Within 10 days of notice of entry of this order, PCNA shall serve a further verified response agreeing to produce all nonprivileged, responsive documents as limited by this order. To the extent PCNA withholds any responsive documents based on privilege, PCNA shall serve a code-compliant privilege log.

As to RFP No. 31, the motion is **DENIED**. RFP No. 31 seeks:

All DOCUMENTS that refer to, reflect, or relate to any Field Service Action issued, or in the process of being issued, in response to complaints experienced by Plaintiff as described in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility.

PCNA responded by asserting several objections, followed by the statement:

Subject to and without waiving these objections, PCNA is unable to comply with this request. PCNA has made a diligent search and reasonable inquiry and has no "Field Service Actions," and no responsive documents have ever existed.

PCNA's response is code-compliant and sufficient. It substantially complies with the statement-of-inability-to-comply requirements of Code of Civil Procedure section 2031.230. Plaintiff's belief that PCNA must have responsive documents does not constitute grounds to compel PCNA to provide a further response.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiff shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 5

25-CIV-04772

BETHANY LIOU, ET AL VS. JON O. FREEMAN, ET AL

BETHANY LIOU
JON O. FREEMAN

PRO SE
SABAA GHOMASHCHI

DEFENDANTS SHAFIQ TAYMUREE AND STONECREST FINANCIAL, INC'S MOTION FOR ISSUE AND MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the Motion for Imposition of Monetary Sanctions by Defendants Stonecrest Financial, Inc., Secured Income Fund-II, LLC, PLM Lender Services, Inc., Jon O. Freeman, and Shafiq Taymuree ("Defendants") against Plaintiffs Bethany Liou, Grande Oak, LLC, and Grande, LLC ("Plaintiffs") is **CONTINUED** to October 8, 2026 at 2:00 p.m. in Department 2 for Defendants to serve Plaintiffs with a copy of the motion and supporting papers.

On December 10, 2025, Plaintiffs' counsel filed a motion to be relieved as counsel. At that time, Defendants had not filed or served this Motion for Sanctions, and the hearing on this motion was not included in the proposed order relieving counsel. On December 17, 2025, Defendants filed this Motion for Sanctions and properly served it on Plaintiffs' counsel, who was then counsel of record. However, on December 19, 2025, the Court granted Plaintiffs' counsel's application to be relieved as counsel. The order relieving counsel does not identify this Motion for Sanctions or its hearing date. As a result, there is no evidence that Plaintiffs, who are now in propria persona, have notice of this hearing. No opposition has been filed or served.

Defendants shall serve Plaintiffs with the Motion for Sanctions and all supporting papers no later than July 1, 2026, and shall file proof of service with the Court at least five court days before the continued hearing date.

Plaintiffs may file and serve an opposition to the motion no later than nine court days before the continued hearing date. Although Plaintiff Bethany Liou may represent herself in this action, Plaintiffs Grande Oak, LLC, and Grande, LLC are limited liability companies and must be represented by licensed counsel to proceed in this action. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145, 1149 [corporation must be represented by licensed counsel in proceedings before a court, and failure to be represented by counsel is a curable defect]; see also *Prato v. Gioia* (2025) 112 Cal.App.5th 651, 663 [LLC/corporate entity could not represent itself or appear through an individual].)

Defendants may file and serve any reply no later than five court days before the continued hearing date.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have